



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 8667
(FOURTH REVISION)

EXPIRATION DATE: June 30, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: KI4U, Inc.
Gonzales, Texas
(Former grantee: The Federal Emergency Management
Agency (FEMA))

(See Appendix A to this document for a list of additional
grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the transportation in commerce
of special form sources of radioactive material in CDV-794
calibrators instead of DOT specification or Nuclear
Regulatory Commission certified packages. This exemption
provides no relief from the Hazardous Materials Regulations
(HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this
exemption only considered the hazards and risks associated
with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-
180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.416 and
175.3, except as specified herein.
5. BASIS: This exemption is based on the application of KI4U,
Inc. dated May 27, 2002, submitted in accordance with
§ 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, transported under special arrangement, <i>non-fissile or fissile excepted</i>	7	UN2919	N/A

7. SAFETY CONTROL MEASURES:

a. The CDV-794 is authorized as a packaging for special form sources of Cs-137 with an activity not exceeding 130Ci (4.8TBq) when the CDV-794 is prepared for transport in accordance with the procedures described in the Operation and Maintenance Manual for the calibrator.

b. The safety measures described in the June 15, 1981 letter of application for this exemption and any subsequent related safety instructions prepared by the FEMA Senior Health Physicist identified in the application are incorporated into and are requirements of this exemption.

8. SPECIAL PROVISIONS:

a. FEMA authorized custodians of CDV-794 calibrators may also ship them pursuant to the provisions of § 173.22a.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and cargo aircraft only.10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

b. Drivers must have been instructed or provided written instructions as to necessary safeguards and proper procedures to be followed in the event of unusual delay, fire, or accident.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

for 

Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUN 12 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

JUL 12 2002

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM/RB